W013606-100826 - California Public Records Request

Message History (4)

On 10/29/2026 3:47:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013606-100826
Body:
RE: PUBLIC RECORDS REQUEST of October 08, 2026, **Reference # W013606-100826**

Dear Brian C,

The City received the following records request from you on October 08, 2026.

Subject: Public Records Act request — ALPR platform user accounts, account history, and training records (Flock Safety and Axon)

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department. This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

As you are aware, Policy 463 (Automated License Plate Readers, Lexipol 2026/09/11), SOP 205 (Automated License Plate Readers Operating Procedure, reissued September 21, 2026) and Policy 821 (CJIS Access, Maintenance, and Security) govern who may hold an account on the Department's ALPR platforms, the training required before access, and how accounts are approved, reviewed and disabled. SOP 205.1 identifies those platforms as Flock Safety and Axon Fleet 3.

As you are also aware, in response to W012672-050426 the Department produced a LEFTA "Training Records Sign-In Sheet" for "Flock Training (Initial)" listing 151 names, and a POST course roster (POST 2-111) for a February 10–11, 2020 Flock training course. The LEFTA sheet is undated, and the completion checkbox beside every name is blank. On the February 2020 roster, the "Successfully Completed Course" column, the hours-attended column, the coordinator signature and the date are blank for every trainee; only a separate April 9, 2021 roster page marks three trainees as having completed the course. Those records show who was listed for training, not who completed it. They need not be produced again.

Scope. "ALPR platform" means Flock Safety; Axon, including Fleet 3 and any Axon application used to search, view or administer ALPR data; and any other ALPR platform on which the Department or its personnel have held user accounts since October 25, 2019, including Vigilant Solutions and the NCRIC AstroMetrics platform. "Account" means any user account on a Department organization or tenant on an ALPR platform, and any account through which a person accessed ALPR data under the Department's authority, whether or not the account holder is a Department employee. The period is October 25, 2019 through the date of this request. Please respond to each item separately.

Several items below ask for records that Department policy or state law says shall exist, and each of those items quotes the requirement. For those items, a response of "no responsive records" would mean that the required record does not exist, and may indicate that the Department is not complying with that policy or law.

This request is in two parts. Part A (items 1–6) concerns the accounts on the Department's ALPR platforms and how they are managed; Part B (items 7–10) concerns per-person records for those account holders. Part B

may require more compilation, so I ask that it not delay the determination or production for Part A. If the Department would prefer to log Part B as a separate request, that is fine.

Part A — Accounts on the Department's ALPR platforms and how they are managed

1. For each ALPR platform, the list of accounts as maintained by the platform or the Department (for example, the administrator user-list export from the Department's Flock Safety organization and the Axon equivalent). For each account it should show the holder's name, login or user identifier, agency or employer, role or permission level, creation date, and deactivation date if any. This includes accounts that have since been deactivated or deleted, to the extent a record of them exists, and accounts created before October 25, 2019 that remained active after that date. Requirement: Policy 463.6(a) provides that ALPR data "shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time (Civil Code § 1798.90.52)." Civil Code § 1798.90.52(a)(3) provides that the record of each access shall include "[t]he username of the person who accesses the information, and, as applicable, the organization or entity with whom the person is affiliated." A "no responsive records" response to this item would mean the Department cannot identify who holds accounts on its ALPR platforms.

2. Platform event-log or administrative-log entries recording account creation or invitation, changes to an account's role, permissions, name or profile, and account deactivation or deletion, for every account in item 1. For each event, the record showing its date and time, the account that performed it, the account affected, and the permissions before and after. The Flock "EVENTLOG" produced under W012570-041926 is an example of the record format for Flock; for Axon, the equivalent audit-trail records are sought. Because the Department has already produced this type of record from its Flock organization, a "no responsive records" response to this item would conflict with that earlier production.

3. Any record designating, authorizing or approving an "authorized designee," or any other person who is not a Department employee, to operate an ALPR system or access ALPR data under the Department's authority. This includes task-force agreements or memoranda of understanding, contractor or vendor agreements, and approval communications. Requirement: Policy 463.4(a) and 463.4(d) permit ALPR access only by a "member" or "authorized designee," and Policy 463.2 provides that "ALPR data retention and access, shall be managed by the ALPR Committee Captain or their designee." If every account holder has been a Department employee, please say so. Otherwise, a "no responsive records" response to this item would mean that people outside the Department were given access with no record authorizing it.

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ALPR policy does not contain a description that state law says it shall include.

5. Any record showing whether accounts on each ALPR platform are created, reviewed, modified or disabled under Policy 821 (CJIS Access, Maintenance, and Security), including the annual account reviews for those accounts and any record of an account disabled under Policy 821.6. Requirement: Policy 821.3.1(b)(3) assigns the CJIS coordinator "[r]eviewing member accounts for compliance with legal and policy requirements at least annually." A "no responsive records" response to this item would mean either that ALPR platform accounts are not managed under Policy 821 or that the annual reviews it requires were not done.

6. Records showing how users authenticate to each ALPR platform (for example, single sign-on configuration or vendor setup documentation linking the platform to the City's user directory), sufficient to show whether disabling a member's City account also disables that member's platform access.

Part B — Per-person records for those account holders

7. For each account holder in item 1, the record showing that the holder completed the department-approved ALPR training before the account was issued (for example, a completed and signed course roster, a certificate of completion, a Training Division or POST/METR completion entry, or an ALPR Administrator record). This item is not limited to people absent from the records produced under W012672-050426, because those records do not show completion. Requirement: Policy 463.4(d) provides that "[n]o member of this department or authorized designee shall operate ALPR equipment or access ALPR data without first completing department-approved training." SOP 205.4 provides that "[p]rior to accessing the ALPR platforms to review data as end-users, any person doing so shall complete Department approved training," and SOP 205.3 provides that "[r]ecords of this training shall be maintained by our Training Division." For any account holder for whom no completion record is produced, a "no responsive records" response would mean the Department has no record that the person completed the training Department policy requires before accessing ALPR data.

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9. For each account holder in item 1, records showing the start and end dates of the holder's employment with or assignment to the Department. Existing records from which the dates can be read (for example, assignment-history, roster or payroll-period records) are sufficient.

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Where a responsive record contains exempt content, please produce the reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)). The records sought are access-control, training and employment-date records; the California Supreme Court has held that peace officers' names, employing agencies and hire and termination dates are not confidential personnel records (Commission on Peace Officer Standards & Training v. Superior Court (2007) 42 Cal.4th 278). If the Department withholds any of them under Penal Code § 832.7, Gov. Code § 7923.600 or Civil Code § 1798.90.55(b), please identify which records and the basis for each. Records held by Flock Safety or Axon on the Department's behalf are sought to the extent they are Department records (Gov. Code § 7920.530; City of San Jose v. Superior Court (2017) 2 Cal.5th 608). Where a record exists in electronic form, please provide it in its native format.

If any item yields no records, please say so for that item and continue with the rest. If the volume is large, I'm glad to discuss narrowing the scope.

Brian

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available. The attached document is responsive to item 3.

We will further respond to your request with updates no later than 11/13/2026.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 10/16/2026 10:09:02 AM, San Mateo Public Records Center wrote:

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Brian

Due to the large number of records which are associated with this request, the City will send you records on a rolling production basis. An initial batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

The initial document released is responsive to Item 1.

In response to your request, the City is withholding records regarding undercover assignments of police officers pursuant to Government Code Section 7922.000. Under this section, the City has determined that the public interest served by not disclosing these records clearly outweighs the public interest served by their disclosure in order to ensure the safety and integrity of the specific officers and any related investigations.

Pursuant to the California Public Records Act, the City has redacted the phone number column contained within the requested document. This information is protected under Article I, Section 1 of the California Constitution, which establishes privacy as an inalienable right and the exemption of Government Code Section 7922.000.

The City has determined that individuals retain a substantial and reasonable expectation of privacy and safety in regard to their license plates. Conversely, there is little to no legitimate public interest in disclosing these phone numbers, as such information does not shed light on the conduct or operations of the City. Because the public interest served by not disclosing this private information clearly outweighs the public interest served by disclosure, the phone numbers have been appropriately segregated and redacted.

We will further respond to your request with updates no later than October 30, 2026.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

> On 10/8/2026 8:56:18 PM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 10/8/2026 and given the reference number **W013606-100826** for tracking purposes.

Record(s) Requested: **Subject: Public Records Act request — ALPR platform user accounts, account history, and training records (Flock Safety and Axon)**

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Part B — Per-person records for those account holders

7. For each account holder in item 1, the record showing that the holder completed the department-approved ALPR training before the account was issued (for example, a completed and signed course roster, a certificate of completion, a Training Division or POST/METR completion entry, or an ALPR Administrator record). This item is not limited to people absent from the records produced under W012672-050426, because those records do not show completion. Requirement: Policy 463.4(d) provides that "[n]o member of this department or authorized designee shall operate ALPR equipment or access ALPR data without first completing department-approved training." SOP 205.4 provides that "[p]rior to accessing the ALPR platforms to review data as end-users, any person doing so shall complete Department approved training," and SOP 205.3 provides that "[r]ecords of this training shall be maintained by our Training Division." For any account holder for whom no completion record is produced, a "no responsive records" response would mean the Department has no record that the person completed the training Department policy requires before accessing ALPR data.

8. The records by which access to each ALPR platform was assigned or approved for each account holder, including any record of the determination that the holder's job duties necessitate ALPR use. Requirement: Policy 463.4(a) limits ALPR use to a member or authorized designee "whose job duties necessitate the use of ALPR"; Policy 463.2 places ALPR data access under the ALPR Committee Captain or their designee; and Policy 821.6 provides that "Department accounts used to access CJI shall

only be created upon approval of the Chief of Police or the authorized designee." A "no responsive records" response to this item would mean the Department has no record of who approved each person's access or on what basis.

9. For each account holder in item 1, records showing the start and end dates of the holder's employment with or assignment to the Department. Existing records from which the dates can be read (for example, assignment-history, roster or payroll-period records) are sufficient.

10. Any record identifying or addressing an account that remained active or was used after the holder's employment or assignment ended, or by a holder who had not completed the required training. This includes any audit memorandum or corrective communication. Requirement: Policy 821.6 provides that member accounts "shall be disabled within one week" when "[t]he account is no longer associated with a member" or "[t]he account has been inactive for 90 calendar days." A "no responsive records" response to this item would mean the Department has no record of finding or addressing any such account, which can be checked against items 1, 2 and 9.

If the Department withholds the name of any account holder, I ask that the account's remaining fields and its records under items 2, 7, 8 and 9 be produced with the name redacted, and that the exemption applied be identified (Gov. Code § 7922.000).

Where a responsive record contains exempt content, please produce the reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)). The records sought are access-control, training and employment-date records; the California Supreme Court has held that peace officers' names, employing agencies and hire and termination dates are not confidential personnel records (Commission on Peace Officer Standards & Training v. Superior Court (2007) 42 Cal.4th 278). If the Department withholds any of them under Penal Code § 832.7, Gov. Code § 7923.600 or Civil Code § 1798.90.55(b), please identify which records and the basis for each. Records held by Flock Safety or Axon on the Department's behalf are sought to the extent they are Department records (Gov. Code § 7920.530; City of San Jose v. Superior Court (2017) 2 Cal.5th 608). Where a record exists in electronic form, please provide it in its native format.

If any item yields no records, please say so for that item and continue with the rest. If the volume is large, I'm glad to discuss narrowing the scope.

Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

On 10/8/2026 8:56:16 PM, Brian C wrote:

Request Created on Public Portal